

SENATE No. 2585

The Commonwealth of Massachusetts

PRESENTED BY:

Michael O. Moore

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing compliance with federal education reporting requirements for out of home placement students.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Michael O. Moore</i>	<i>Second Worcester</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>10/1/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>10/9/2025</i>

SENATE No. 2585

By Mr. Moore, a petition (accompanied by bill, Senate, No. 2585) (subject to Joint Rule 12) of Michael O. Moore for legislation to establish compliance with federal education reporting requirements for out of home placement students. Children, Families and Persons with Disabilities.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing compliance with federal education reporting requirements for out of home placement students.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 69 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after section 37 the following new section:-

3 “Section 38. (a) As used in this section, the following terms shall, unless the context
4 requires otherwise, have the following meanings:-

5 “Student”, shall mean a child in an out-of-home placement under the custody or
6 jurisdiction of the department of children and families or a young adult who has signed a
7 voluntary placement agreement with the department of children and families.

8 “Electronic file”, shall mean an electronic repository of all relevant data pertaining to a
9 child or youth who is in an out-of-home placement under the custody or jurisdiction of the
10 department of children and families educational records.

(b) The department shall enter a memorandum of understanding with the department of children and families, local education agencies, the district superintendent, and the building level clinical designee of the school in which a student in an out of home placement under the custody or jurisdiction of the department of children and families is enrolled for the purpose of sharing data relevant to the student's electronic file. They shall establish a protocol for weekly electronic data-sharing to maintain accurate and current information and shall update the information provided in a student's electronic file upon any change to their out-of-home placement status. Immediately upon a change in placement or school, and on a weekly basis, the department shall inform the district superintendent and the building level clinical designee of the school of any students enrolled who are in out-of-home placements and provide school districts with disaggregated data necessary to ensure the students receive appropriate educational supports and services.

The department, in conjunction with local education agencies, the district superintendent, and the building level clinical designee of the school where the student is enrolled, shall provide to the electronic centralized education records database information including, but not limited to, the (a) the student's name, race/ethnicity, age; (b) the student's current grade level, any prior grade retentions, and listing of all schools attended; (c) the student's most recent previous placement type, location, and name of guardian/primary caregiver; (d) the student's current placement type, location, and name of guardian/ primary caregiver; (e) if the student has a disability, section 504, or individualized education plan; and (f) the students academic history. The department of children and families shall immediately transmit educational and placement information to the department, which shall then be responsible for immediately transmitting this

information to the local education agency, the district superintendent, and the building level clinical designee of the school in which the student is enrolled.

The department of children and families shall provide to the electronic centralized education records database information pertaining to a student's placement including, but not limited to, (a) their guardian/primary caregiver placement; (b) when they enter or re-enter an out-of-home placement; (c) change placements; (d) return from emergency short term placements; (e) any other short term placements with DYS or law enforcement or behavioral or health care facility; (f) are reunified with their family; (g) and any changes to disability status and supports. Upon receiving notice, the department shall immediately notify the local education agency, the district superintendent, and the building level clinical designee of the school the student is currently attending.

(c) Notwithstanding any general or special law to the contrary, the department, in conjunction with the department of children and families, local education agencies, and public schools, shall establish, implement, and maintain an electronic centralized education records database, overseen by the executive office of education, to be used by the department for secure and streamlined access to academic records for students in an out-of-home placement.

The electronic centralized education records database will provide the real-time electronic data for an electronic file that shall be provided to each individual student in an out-of-home placement. The electronic file shall follow each student upon the transfer of schools to ensure academic continuity and accessibility for students in out-of-home placements.”

SECTION 2. Chapter 69 of the General Laws, as so appearing, is hereby amended by inserting after section 38 the following section:-

55 “38A. (a) For the first academic year this act is implemented, the department, the
56 department of children and families, and the director of office of student and family support,
57 shall meet monthly to identify areas of improvement, create and implement recommendations to
58 fix delays or problems regarding the electronic file system. For sequential academic years, all
59 parties shall meet bi-annually.

60 On or before the end of each academic year, the department shall submit, and make
61 public, an electronic report created by the department, the department of children and families,
62 district superintendents, and local education agencies to the clerks of the house and senate,
63 juvenile court, the governor, the executive office of education, the attorney general civil rights
64 unit, the safe and supportive schools commission, Massachusetts Association of School
65 Superintendents, Massachusetts Teachers Association, Massachusetts School Mental Health
66 Consortium, bryt team of the Brookline Center for Community Mental Health, and the parent
67 professional advocacy league. This report shall include, but is not limited to, (a) individual
68 school-level outcome data for each local education agency enrolling at least 15 students in out-
69 of-home placements; (b) number of students in out-of-home placements statewide and within
70 each local education agency; (c) suspension and expulsion rates for students in out-of-home
71 placements; (d) truancy, attendance, and dropout rates for students in out-of-home placements;
72 (e) number of school changes for students in out-of-home placements; and (f) number of years
73 behind grade level for students in out-of-home placements.

74 Within 30 days of receiving the report for the academic year, the department, the
75 executive office of education, the safe and supportive schools commission, bryt team of the
76 Brookline Center for Community Mental Health, and the parent professional advocacy league
77 shall review the data to identify any areas of concern or improvement and provide evidence-

based recommendations to address them. Any recommendations provided by the department, the executive office of education, and the safe and supportive schools commission within this report shall be implemented within 14 days. Upon the implementation of these recommendations, a meeting will be held between the department, the department of children and families, the executive office of education, and the safe and supportive schools commission to review the updated system and to establish up with plan for the coming academic year.”

SECTION 3. This act shall take effect upon passage.